



EAGLE MOUNTAIN PLANNING COMMISSION MEETING MINUTES

April 25, 2023, 5:30 p.m.
Eagle Mountain City Council Chambers
1650 East Stagecoach Run, Eagle Mountain, Utah 84005

COMMISSION MEMBERS PRESENT: Commissioners Jason Allen, Jeremy Bergener, Matthew Everett, Christopher Pengra, Brent Strong, and Alternate Commissioner Robert Fox.

CITY STAFF PRESENT: Steve Mumford, Deputy City Administrator/Community Development Director; Marcus Draper, City Attorney; Evan Berrett, Economic Development Director; Todd Black, Wildlife Biologist/Environmental Planner; Robert Hobbs, Planning Manager; David Stroud, Senior Planner; Steven Lehmitz, Planner; Natalie Winterton, Grants Coordinator/Management Analyst; Terrence Dela Pena, Finance/Management Analyst.

CITY STAFF PRESENT ELECTRONICALLY: Elizabeth Fewkes, Recording Secretary.

5:30 P.M. – Eagle Mountain City Planning Commission Work Session

1. Eagle Mountain City Planning Commission Work Session

Commissioner Everett called the meeting to order at 5:36 p.m.

2. Legislative Update

This item was discussed after item 3.B.

Deputy City Administrator/Community Development Director Steve Mumford explained amendments to Municipal Code to come into compliance with recent State Legislative actions including SB 174, HB 364, HB 406, and SB 199.

3. Discussion Item

3.A. DISCUSSION ITEM – Upcoming Code Amendments

This item was discussed after item 8.C. during the policy session.

Senior Planner David Stroud explained the proposed amendments to EMMC 17.75., 17.38., and 17.40.

Discussion clarified the definition of an accessory sales activity listed in 17.75.073(C)(3).

Commissioner Everett suggested adding a timeframe to the submission of evidence of compliance in 17.38.040(D) and directed staff to add the amendments as action items on a future agenda.

3.B. DISCUSSION ITEM – Axio #1 Concept Plan

This item was discussed first.

Planner Steven Lehmitz presented the item. Axio #1 is an automobile sales lot proposed at 3677 E. Campus Drive. The lot is zoned commercial and is 1.34 acres. The proposed building is 5,077 square feet. The recorded plat for this property and the Commercial Community zone lists the front setback as a minimum of 10 feet and a maximum of 25 feet. The proposed structure is outside of that setback range. The City Council can approve alternative setbacks per EMMC 17.35.040. Four buildings exist on Campus Drive with front setbacks that range from 50 feet to 140 feet. The Planning Commission may provide feedback related to the setback requirements.

Applicant representative Travis Johnson provided background information on his history and the business. He explained that a right-in, right-out access is preferred for customers test driving unfamiliar vehicles but he is also amenable to closing off that access and increasing the parking. The business would sell quality, used vehicles. The site is desirable due to its visibility and high traffic counts. They are looking at purchasing additional property adjacent to the site. Their advertising excludes previous popular car dealership trends that some cities find objectionable; however, they are required to use signage provided by the car manufacturers for sales events and utilize temporary tents for paintless dent repair (PDR) work. The building will be placed towards the north side of the property adjacent to Wride Memorial Parkway. Its design was patterned after a Starbucks in Draper west of I-15 with a lounge-inspired style. The proposed location for the Beto's dumpster and cross-lot access would impede the functionality of their property.

Commissioner Everett noted that the Commission had previously discussed a Municipal Code amendment to allow alternative front setbacks for uses such as gas stations and thinks the proposed location for the building is appropriate for this use. He would prefer to retain the access on Ranches Parkway as it would assist with traffic flow and this use will not produce high traffic counts.

Commissioner Allen concurred with the consideration of the use and functionality of lot design when approving front setbacks.

Mr. Mumford explained that the traffic signal at Stonebridge Lane and Ranches Parkway is scheduled to go out to bid in the near future and a free right on Wride Memorial Highway would be the next step to road improvements in this area followed by a high-t intersection at Ranches Parkway and Wride Memorial Highway which has yet to be designed or budgeted.

Commissioner Fox noted that this use would produce less traffic volume than the previously contemplated gas station. Nevertheless, he believes an access off Campus Drive would be more advantageous.

Commissioner Strong confirmed with the applicant that connectivity is planned to the adjacent lot which would allow the site to be accessed from Campus Drive through a shared access with the neighboring property.

Discussion ensued regarding access and maintenance of the City-owned property between the north side of the site and Wride Memorial Highway.

Commissioner Everett adjourned the work session at 6:34 p.m.

6:30 P.M. – Eagle Mountain City Planning Commission Policy Session

Commissioner Everett called the policy session to order at 6:34 p.m.

4. Pledge of Allegiance

Commissioner Everett led the Pledge of Allegiance.

5. Declaration of Conflicts of Interest

Although not a conflict of interest, for transparency, Commissioner Allen disclosed that his father serves on the Board of Directors for Mountain America Credit Union.

6. Approval of Meeting Minutes

6.A. April 11, 2023 Planning Commission Minutes

MOTION: *Commissioner Bergener moved to approve the April 11, 2023 minutes. Commissioner Pengra seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>
☒ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>	☐ <i>Jeremy Bergener</i>
☐ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>	☒ <i>Matthew Everett</i>	☐ <i>Matthew Everett</i>
☒ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>
☒ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>
☒ <i>Robert Fox</i>	☐ <i>Robert Fox</i>	☐ <i>Robert Fox</i>	☐ <i>Robert Fox</i>

The motion passed with a unanimous vote. As Commissioner Everett was absent during the April 11, 2023 meeting, Commissioner Everett abstained and Alternate Commissioner Fox voted to approve the minutes as he had voted during the meeting due to Commissioner Everett's absence.

7. Status Report

Staff reviewed the planning items discussed and voted upon during the April 11, 2023 City Council meeting.

8. Action and Advisory Items

8.A. ACTION ITEM – PUBLIC HEARING: Eagle Mountain Benches Zoning

Planning Manager Robert Hobbs presented the item. Planning Commission review of a request for a General Plan Future Land Use Amendment from Agricultural/Rural Density 1 to Agricultural/Rural Density 2 and an associated rezone from RA2 and AG Residential, as per the City Council minutes from July 17, 2018, to RD1; pertaining to 47.517 acres of land across Utah County Parcels Numbers: 59:006:0055, 59:006:0054, 59:006:0047, 59:006:0046 & 59:006:0042 east of the Rocky Mountain Power powerlines in anticipation of potential, future single-family residential development. The applicants propose to change the requirement that lots east of the powerline corridor within the area shown for rezoning on the maps that follow be allowed to be one acre in size – rather than 2.5 acres, to allow a portion of the lot to reside within the Rocky Mountain Power easement with a 12-foot height cap for underlying improvements, and reduction or elimination of the 150-foot open space buffer requirement imposed in 2018 along the south of their land.

Applicant representative Karen Scott said that they had intended to submit the plan earlier but were unable due to hardship. She hopes that the City is favorable of the request at this time. She said that when developers attempted to design the area with 2 ½ acre lots, they were unable to configure the property in a feasible layout and that would not have resulted in millions of dollars of infrastructure improvements.

Mr. Hobbs explained that the City plans to have a regional trail through the powerline corridor; however, specific plans and designs have not yet been completed.

Commissioner Everett opened the public hearing at 6:56 p.m.

Commissioner Everett noted that the Commission received emails from Jody Hooley and Mike Kiefer regarding the item.

Commissioner Everett closed the public hearing at 6:57 p.m.

Staff confirmed that the application has been before the Commission and Council several times previously and their reason for not approving the request was due to concerns with allowing one-acre lots instead of 2 1/2-acre lots on the eastern side of the project.

Discussion ensued regarding the requested lot sizes, buffering, and transitions.

Commissioner Bergener expressed concern with the request to amend the General Plan land use designation for the property.

Commissioner Everett stated that he is not concerned about the rezone and General Plan amendment; however, he does have significant concerns with the concept plan and would not be favorable of a site plan submitted with the same design.

Commissioner Allen concurred with Commissioner Everett and feels the proposal would provide adequate lot size transitioning.

Commissioner Pengra noted that the area has been preserved for large lots and the proposal does not work well because of the power corridor as it would be unadvisable and problematic to develop the land under the powerlines for residential uses.

Commissioner Strong agreed that the development is problematic because of the power lines, especially when the additional utility lines outside of the main corridor are taken into account.

Discussion ensued regarding the proposed and possible lot layouts.

MOTION: *Commissioner Everett moved to recommend approval to the City Council of the General Plan Amendment and rezone for Utah County Parcels Numbers: 59:006:0055, 59:006:0054, 59:006:0047, 59:006:0046, and 59:006:0042. Commissioner Allen seconded the motion.*

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☒ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>	☐ <i>Jason Allen</i>
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☐ <i>Brent Strong</i>	☒ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>

The motion failed with a vote of 3:2.

MOTION: *Commissioner Bergener moved to recommend denial to the City Council of the General Plan Amendment and rezone for Utah County Parcels Numbers: 59:006:0055, 59:006:0054, 59:006:0047, 59:006:0046, and 59:006:0042. Commissioner Pengra seconded the motion.*

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☒ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>

The motion passed with a vote of 3:2.

8.B. ORDINANCE – An Ordinance of Eagle Mountain City, Utah Amending the Eagle Mountain Municipal Code, Chapter 7 Parks, Trails, and Special Events; Chapter 16 Subdivisions and Chapter 17 Zoning.

Grants Coordinator/Management Analyst Natalie Winterton and Finance/Management Analyst Terrence Dela Pena presented the item. Changes made based upon feedback from the September

6, 2022 City Council meeting include a one-year to nine-month landscape requirement for developments, the requirements applying only to new builds, and small wording improvements.

Residents have requested that the City take the necessary steps so they can qualify for Flip the Strip and other programs. The Central Utah Water Conservancy District (CUWCD) has said that certain requirements must be met to continue in a working relationship with them. This is the start of a multi-pronged effort to conserve water in the City.

Benefits of the program:

- Builders: Qualify for rebates from the State of Utah for installing more water-wise landscapes.
- Residents: Qualify for Flip the Strip and other State relandscaping rebates.
- City: Qualifies for continued business with the CUWCD and additional grants.

Proposed amendments to Eagle Mountain Municipal Code:

- Chapters 16 and 17 – minor changes;
- 17.10.030 – adds a definition for ambiguous concepts;
- 17.25.050 – makes standards more consistent and increases the time for builders to install landscaping;
- 17.60.030 – clarifies that new requirements are only applicable to new builds and defines significant relandscaping;
- 17.60.040 - clarifies that new requirements are only applicable to new builds, requires Water Sense smart irrigation, prohibits nonfunctional turf, and adds irrigation requirements;
- 17.60.070 – deletes standards made unnecessary by the amendments;
- 17.60.080 – deletes standards made unnecessary by the amendments and corrects grammatical errors;
- 17.60.090 – adds new requirements to align the standards with CUWCD recommendations and emphasizes that the standards will only apply to new builds;
- 17.60.110 – clarifies language; and
- 17.60.110 – deletes the table that is inapplicable with the new standards.

Discussion ensued regarding the challenges of measuring and enforcing changes to significant relandscaping as defined as more than 75% of the lot's total landscaping and considerations for phased projects.

Because the item was not listed as a public hearing on the agenda, the Commission confirmed with staff that the item had been noticed as a public hearing.

Commissioner Everett opened the public hearing at 7:42 p.m. As there were no comments, he closed the hearing.

Discussion supported the benefit of the changes despite enforceability difficulties.

Commissioner Everett noted the importance of the City's partnership with the CUWCD and agrees with the benefits to the residents and City noted in the staff report.

Commissioner Allen cited 17.60.090(D), "At maturity, landscape areas shall have enough plant material to create at least 50% living plant cover at the ground plane, not including tree canopies." He feels that requiring 50% living plant cover might be too high and 25% would be more appropriate. Commissioner Pengra agreed.

Commissioner Pengra expressed concern with requiring a Water Sense smart irrigation controller and the specification for drip irrigation systems due to enforceability. He feels that mulch is as effective as a weed barrier and is more environmentally friendly.

Ms. Winterton explained that the requirement for 50% living plant cover, Water Sense smart irrigation controllers, and the specification for drip irrigation systems came from CUWCD materials; however, she is unsure if they would be amenable to a higher or lower percentage of living plant cover. Artificial turf is not contemplated in the current standards.

Discussion ensued regarding the consistency in collecting and refunding the \$2,000 cash escrow retained until landscaping is completed, landscaping finished outside of the allotted timeframe by individual residents rather than developers, and the City installing landscaping for properties out of compliance.

Commissioner Pengra stated that he has objections to the collecting and holding of the escrow money due to possible issues with managing and returning the funds. He feels landscaping compliance problems would be better addressed through Code Enforcement and the judicial process.

Mr. Mumford explained that there is a separate account for the escrows and the payment, tracking, and refunding processes. The Planning Department has struggled with balancing the requirements and procedures. He suggested that the City consider a landscaping installation incentivization rather than being punitive.

Discussion ensued regarding the benefits and challenges of requiring individuals to deposit funds in an escrow when building their own homes compared to professional builders.

City Attorney Marcus Draper explained that developers can be held accountable for landscaping installation through their development agreement and would be motivated by the potential for litigation over the escrow amount whereas individual residents would likely be motivated by having their money refunded.

Commissioner Everett suggested including a provision to allow for extensions of the landscaping installation timeframe for extenuating circumstances.

Commissioner Bergener noted a correction to the enumeration to 17.60.040(I) to remove the superfluous 3.

MOTION: *Commissioner Pengra moved to recommend approval to the City Council of an ordinance of Eagle Mountain City, Utah amending the Eagle Mountain*

Municipal Code, Chapter 7 Parks, Trails, and Special Events; Chapter 16 Subdivisions and Chapter 17 Zoning with the following changes:

- 1. The number 3 shall be removed from the section 17.60.040(I) title; and***
- 2. Staff shall work to include a provision to 17.25.050(A) to allow the City to provide extensions to individual lot owners if they can show meaningful progress on their landscaping.***

Commissioner Allen seconded the motion.

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
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☒ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>	☐ <i>Brent Strong</i>

The motion passed with a unanimous vote.

8.C. ACTION ITEM – PUBLIC HEARING: Preliminary Plat and Site Plan approval of Mountain America Credit Union.

Commissioner Everett disclosed that he works in the banking industry for a competitor but this institution does not compete in the segment that he works in.

Senior Planner David Stroud presented the preliminary plat and site plan approval of a Mountain America Credit union on a 43,689 square foot lot within the Marketplace at Eagle Mountain development. The parcel is zone Commercial Community. The 4,422-square-foot building will be oriented toward Eagle Mountain Boulevard.

Commissioner Everett opened the public hearing at 8:18 p.m. As there were no comments, he closed the hearing.

Commissioner Everett stated that he thinks the business will be a welcome addition to the City and he appreciates the design of the proposed elevations. Commissioner Pengra concurred.

MOTION: ***Commissioner Everett moved to recommend approval to the City Council of the preliminary plat and site plan for Mountain America Credit Union. Commissioner Strong seconded the motion.***

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
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☒ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>	☐ <i>Chris Pengra</i>

☒ **Brent Strong** ☐ **Brent Strong** ☐ **Brent Strong** ☐ **Brent Strong**

The motion passed with a unanimous vote.

9. Discussion Items

Staff and the Commission discussed item 3.A. from work session: discussion item – upcoming code amendments.

Commissioner Pengra requested a discussion to clarify the responsibilities of the Planning Commission review of master development agreements per Utah Code 10-9(a)-532.

Commissioner Everett directed staff to include the requested item on a future agenda when space is available.

10. Next Scheduled Meeting

The next Planning Commission meeting is scheduled for May 9, 2023.

Commissioner Allen will not be in attendance and Commissioner Everett plans to attend virtually.

11. Adjournment

MOTION: *Commissioner Strong moved to adjourn at 8:31 p.m. Commissioner Allen seconded the motion.*

<i>Those Voting Yes</i>	<i>Those Voting No</i>	<i>Those Abstaining</i>	<i>Those Absent</i>
☒ Jason Allen	☐ Jason Allen	☐ Jason Allen	☐ Jason Allen
☒ Jeremy Bergener	☐ Jeremy Bergener	☐ Jeremy Bergener	☐ Jeremy Bergener
☒ Matthew Everett	☐ Matthew Everett	☐ Matthew Everett	☐ Matthew Everett
☒ Chris Pengra	☐ Chris Pengra	☐ Chris Pengra	☐ Chris Pengra
☒ Brent Strong	☐ Brent Strong	☐ Brent Strong	☐ Brent Strong

The motion passed with a unanimous vote.

The meeting was adjourned at 8:31 p.m.

Approved by the Planning Commission on May 23, 2023.


Steve Mumford (May 24, 2023 12:11 MDT)

Steve Mumford, AICP
Deputy City Administrator/Community Development Director

04.25.23 PC Approved Minutes- not signed

Final Audit Report

2023-05-24

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